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17-CLJ-04102 BH FINANCIAL SERVICES, INC. VS. HECTOR BARRAGAN, ET AL.

LINE 2

BH FINANCIAL SERVICES, INC.
HECTOR BARRAGAN

JOHN P. KENOSIAN

PLAINTIFF: BH FINANCIAL SERVICES, INC.'S CLAIM OF EXEMPTION (*continued from 6/08/26*)

TENTATIVE RULING:

On May 8, 2026, plaintiff BH Financial Services, Inc. ("BH"), the judgment creditor herein, filed an opposition to defendant and judgment debtor Hector Barragan ("Barragan")'s claim of exemption. (See Opposition to Claim of Exemption).

California Code of Civil Procedure, section 706.050 provides, in pertinent part, that garnishment of the wages of an employee is limited to the lesser of 20 percent of the disposable earnings of an individual judgment debtor for any workweek subject to levy (except for certain high earners). The term "disposable earnings" is defined as "the portion of an individual's earnings that remains after deducting all amounts required to be withheld by law." (Code Civ. Proc., § 706.011, subd. (a)). On his claim of exemption filed on May 19, 2026, Barragan indicates he is able to pay \$40 every two weeks.

The burden of proof is on the judgment debtor to demonstrate that the property to be levied on is exempt in whole or in part. (Code Civ. Proc., § 703.580.) Barragan submitted a confidential financial statement. But while he completed part of the first page of the WG-007 form and provided his income, he initially failed to complete the form with his assets or expenses and omitted the entire second page of the form. BH objected on that basis.

Accordingly the Court lacked the information necessary to evaluate the validity of the exemption. This matter was therefore continued to July 13, 2026 at 2 p.m. Barragan was Ordered to fully complete the WG-007 and attach any additional supporting evidence and have it filed confidentially by June 15, 2026. Barragan was admonished that if he failed to do so, the Exemption will be denied. Barragan submitted additional information on June 12, 2026. BH has not supplemented its generalized objection.

Barragan appears to have filled out the financial form inaccurately because the two (May 19 and June 12) financial forms are filled out inconsistently, although the Court assumes that the errors were inadvertent and relies on the included paystub for income. And Barragan has still failed to include information on his assets despite the Court's admonition to do so. Regardless, just taking into account Barragan's pay stub and his claimed expenses (which the Court finds generally reasonable with the exception of the amount expended on clothing), he may have as much as \$659 per month available to pay his debt. But it is notable that Mr. Barragan has also submitted evidence that suggests he may be out-of-work for a period of three months this Fall (although it is unclear whether that will impact his income), as well as some evidence of potential housing instability.

Absent additional information provided at the hearing and based on the information provided, it appears that Barragan can pay \$125.00 per pay period towards the outstanding debt owed to BH.

Accordingly, the Court GRANTS IN PART creditor's Opposition to defendant/judgment debtor's claim of exemption. The Court ORDERS Barragan's wages to be garnished in the amount of \$125.00 per pay period.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

21-CIV-04741 MICHAEL D. LIBERTY VS. BANK OF THE WEST, ET AL.

LINE 3

MICHAEL D. LIBERTY
RONALD O'CONNELL

PRO PER
EDWARD S. ZUSMAN

DEFENDANT: SARAH HILLHOUSES MOTION FOR SUMMARY JUDGMENT (*continued from 07/06/26*)

TENTATIVE RULING:

The Motion for Summary Judgment or, in the alternative, Summary Adjudication, by Defendant Sarah Hillhouse (“Defendant” or “Sarah”) to the Fourth Amended Complaint (“4AC”) of Plaintiff Michael D. Liberty (“Plaintiff”) is DENIED in part and GRANTED in part..

Background

According to the operative Fourth Amended Complaint, Plaintiff is an attorney who employed Defendant (his onetime girlfriend) as an independent contractor, a bookkeeper.(4AC, ¶ 5.) Defendant had control over Plaintiff’s finances, books, records, credit cards and accounting documents. (Ibid.) Plaintiff alleges that Defendant embezzled approximately \$800,000 from Plaintiff’s retirement account, or “defined benefit plan,” using secret bank transfers, and also embezzled from Plaintiff’s business checking account, as well as illegally incurred charges on Plaintiff’s credit cards and other accounts. (4AC, ¶ 14-16.)

Defendant seeks summary judgment or alternatively, summary adjudication to the Ninth through Fourteenth Causes of Action in the 4AC.

Legal Standard

The pleadings play a key role in a summary judgment motion by framing the outer measure of materiality in a summary judgment proceeding. (*Hutton v. Fidelity National Title Co.* (2013) 213 Cal.App.4th 486, 493.) Thus, a defendant moving for summary judgment is only required to negate a plaintiff’s theories of liability as alleged in the complaint. (*Id.*) Thus, the first step in analyzing a summary judgment motion is identifying the issues framed by the pleadings since it is these allegations to which the motion must respond. (*Id.*) Next, the moving party must establish facts that negate the claim and justify a judgment in the moving party’s favor. (*Id.*, at 493-494.) If the moving party meets this burden, then the court must determine whether the opposition demonstrates a triable issue of material fact. (*Id.* at 494.)

For purposes of a summary judgment or summary adjudication motion, the defendant has met the initial burden of showing that a cause of action has no merit if the party has shown that one or more elements cannot be established, or there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the defendant has met this burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Id.*)

For a defendant to meet the initial burden, it may present affirmative evidence negating as a matter of law an essential element of plaintiff’s claim. (*Guz v. Bechtel Nat., Inc.* (2000) 24 Cal.4th 317, 334.) Another way for a defendant to meet its initial burden is to show that an essential element of plaintiff’s claim cannot be established. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) To rely on an absence of evidence, the defendant must show that plaintiff does not possess and cannot reasonably
